

CASE SUMMARY

State v. Jameed & Anr.

Ct. Case No. 184/2018 | PS Bhalswa Dairy | CNR DLNW010037562018

COURT	Court of the Additional Sessions Judge (Electricity), North-West District, Rohini Courts, Delhi
JUDGE	Sh. Prashant Kumar, Addl. Sessions Judge (Electricity)
DATE OF JUDGMENT	date of judgment (date of inspection / offence: date of inspection)
PARTIES	State (Tata Power Delhi Distribution Ltd.) v. (1) Jameed and (2) Rasheed Ahmad
STATUTES INVOKED	Sections 135, 138 & 150 (and third proviso to s. 135(1)), Electricity Act, 2003; Section 24, IPC; Sections 65B & 106, Indian Evidence Act, 1872; Sections 251 & 313, Cr.P.C.
RESULT	Convicted under Sections 135, 138 and 150, Electricity Act, 2003. A direct-theft case in which the mode of abstraction also involved interference with the licensee's works (Section 138), with two accused. Matter posted for hearing on quantum of sentence.

CHARGE BEFORE THE COURT

Whether the accused Jameed and Rasheed Ahmad dishonestly abstracted electricity by directly tapping the licensee's network (Section 135), whether the mode involved unauthorised interference with the licensee's meters/works (Section 138), and whether either accused abetted the other's offence (Section 150); and whether, an unauthorised abstraction being proved, the accused rebutted the third-proviso presumption.

FACTS

On inspection, an enforcement team of TPDDL found a direct abstraction of electricity at the premises, the mode involving interference with the licensee's works/apparatus. Two persons, Jameed and Rasheed Ahmad, were arrayed as accused — the case proceeding on both direct theft (Section 135) and unauthorised interference with the licensee's meters/works (Section 138), with abetment under Section 150. The usual inspection documents were prepared and the proceedings videographed with a Section 65B certificate.

On a complaint under Sections 135/138/150, both accused pleaded not guilty. The inspecting officials and the Investigating Officer were examined and the electronic record proved. Under Section 313 Cr.P.C. the accused denied the allegations and led no defence evidence.

REASONING OF THE COURT

HEADNOTE

Direct abstraction of electricity is theft under Section 135; where the mode involves unauthorised interference with the licensee's meters or works, Section 138 applies alongside; and a co-accused who assists the abstraction abets it under

Section 150. On proof of the unauthorised means the third-proviso presumption arises, and both accused, leading no evidence, are convicted.

The direct abstraction was theft under Section 135. The Court set out the ingredients of Section 135(1), importing Section 24 IPC for “dishonestly,” and treated the direct abstraction at the premises as a clause (a) taking from the licensee’s network; on proof of that artificial means the third proviso’s presumption arose.

The mode engaged Section 138. Because the abstraction was effected by interfering with the licensee’s works/apparatus, Section 138 — unauthorised interference with meters or works — applied alongside Section 135, adding a distinct head of liability.

Two accused; abetment under Section 150. With two persons arrayed, the one who assisted or permitted the abstraction abetted it under Section 150, which carries the punishment of the principal offence; the liability of each did not depend on the other’s conviction.

The presumption was compulsory and, unrebutted, convicted. No public-witness infirmity being shown (*Ashwani Kumar; Sushil Sharma*), and following *Neeraj Dutt* and *Hiten P. Dalal* on the compulsory presumption, the accused — leading no defence evidence and producing no paid bills (*Mukesh Rastogi*; Section 106) — failed to rebut it.

INTERPRETATION OF THE ELECTRICITY STATUTES

ELECTRICITY ACT, 2003

Section 135 & Section 150 — Theft and Abetment

Direct abstraction of electricity is theft under Section 135; a person who consciously assists or permits it abets the offence under Section 150 and is liable to the same punishment. Where two persons act together in the abstraction, each may be principal or abettor.

Section 138 — Interference with Meters or Works

Section 138 punishes unauthorised interference with the licensee’s meters, works or apparatus — including unauthorised connection, reconnection, or interference with the equipment. It applies alongside Section 135 where the mode of theft is effected by interfering with the licensee’s works, adding a distinct head of liability to the dishonest abstraction.

HELD

The prosecution proved beyond reasonable doubt that electricity was dishonestly abstracted at the premises by interfering with the licensee’s works, and that the accused led no evidence to rebut the statutory presumption. **Jameed and Rasheed Ahmad are accordingly convicted under Sections 135, 138 and 150 of the Electricity Act, 2003**, and are to be heard on the quantum of sentence.

SIGNIFICANCE

A conviction combining theft (Section 135), interference with the licensee’s works (Section 138) and abetment (Section 150), with two accused. Four propositions stand out:

- **Section 138 can apply alongside Section 135.** Where the theft is effected by interfering with the licensee’s meters or works, Section 138 adds a distinct head of liability to the Section 135 abstraction.
- **Abetment reaches the assisting co-accused.** A second person who assists or permits the abstraction abets it under Section 150 and shares the principal’s punishment.
- **The presumption operates against each accused.** Once the unauthorised means is proved, each must displace the reverse-onus presumption with evidence of lawful use.
- **Silence and no paid bills convict.** Leading no evidence, the accused leave the compulsory presumption un rebutted (*Neeraj Dutt; Mukesh Rastogi*).

CITATIONS

Neither side argued from case law; every citation below is drawn from the Court’s own reasoning.

CASE	PRINCIPLE CITED FOR	TREATMENT
<i>Punjab State Electricity Board v. Ashwani Kumar</i> 2010 (7) SCC 569	An inspection report prepared by Board officers in discharge of official duty carries a presumption of regularity; the onus lies on the consumer to rebut it by cogent evidence.	Relied on
<i>Sushil Sharma v. BSES Rajdhani Power Ltd.</i> Delhi HC, CrI. A. 1060/2010 (22.12.2010)	Non-examination of an independent/public witness is no infirmity where the inspecting officials are trustworthy and bear no enmity towards the accused.	Relied on
<i>Neeraj Dutt v. State</i> SLP(CrI.) 6497/2020	“Shall presume” denotes a compulsory legal presumption which the Court is bound to draw until the fact is disproved.	Relied on
<i>Hiten P. Dalal v. Bratindranath Banerjee</i> 2001 (6) SCC 16	A statutory presumption need not be conclusively disproved; the accused must adduce evidence making the defence reasonably probable to a prudent man.	Relied on
<i>Mukesh Rastogi v. North Delhi Power Ltd.</i> 2007 (99) DRJ 108	The easiest rebuttal of the theft presumption is to produce paid electricity bills; under Section 106 of the Evidence Act the onus of proving lawful, metered use lies on the consumer.	Relied on

This summary is a condensed digest prepared for quick reference. It is not a substitute for the full text of the judgment and should not be relied upon for legal advice without verification against the original.